

IN THE LAHORE HIGH COURT, LAHORE

Crl. Misc. No. 76935-B of 2025

The State and another.

S.No. of order/proceeding.	Date of order/proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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Chaudhary Aziz Ashraf, Legal Consultant
Punjab Food Authority.

The petitioner (Muhammad Younas) was refused post arrest bail by the court of learned Magistrate Section 30, Kot Radha Kishan vide order dated 04.12.2025 and then by the court of learned Additional Sessions Judge, Kot Radha Kishan through order dated 17.12.2025, in case F.I.R. No. 2798/2025, dated 21.09.2025, registered with Police Station Kot Radha Kishan, District Kasur, for offences under Sections 22-A, 23 and 24 of the Punjab Food Authority Act, 2011. He has approached this Court for the same relief.

2. After hearing the learned counsel for petitioner, the learned Deputy Prosecutor General, the learned Legal Consultant for Punjab Food Authority and perusal of record, it was observed that according to F.I.R. on 19.09.2025 at 01:00 a.m. (night) Usman Shafiq-complainant (Assistant Food Safety Officer, District Kasur) along with officials stopped a vehicle bearing registration No.LES/5821 at Mehmood Abad

Stop, Kot Radha Kishan, in the pursuance of pointation of vigilance team. 2400/- liters of milk was found in the compartments of vehicle. Names of the owners of the vehicle were found as Mehmood Akbar son of Muhammad Akbar and Muhammad Younas (petitioner) son of Qutab. Samples of the milk were separated and got tested from Punjab Food Authority Lab, Lahore. According to report milk was declared as substandard, fake and artificial, which was destroyed through discard form.

3. Main focus of the learned counsel for the petitioner was on the point that since petitioner was not a manufacturer of adulterated milk, hence was not “food operator”, as such at the most he could be held responsible for possessing the said milk, therefore his case was not hit by Section 22-A of Punjab Food Authority Act, 2011, whereas remaining offences under Sections 23 and 24 thereof were bailable. Learned counsel placed reliance upon the cases titled “Rehmat Ullah Versus The State and another” (2024 YLR 161 Lahore) and “Muhammad Ashraf Versus The State and another” (2024 YLR 1182 Lahore).

4. Definition of “food operator” as provided in Section 2(k) of Act of 2011 reads as under:-

“(k) “food operator” means a person who manufactures for sale, transports, stores, sells, distributes, imports or exports food;”

The word “food operator” has been given vast and comprehensive connotation by the legislature, which covers not only the manufacturer,

but also includes every person, who transports, stores, sells, distributes, imports, or exports food.

5. The word “Transport” has been defined in the various dictionaries. The Concise Oxford English Dictionary defines the word “Transport” as follows:-

“Take or carry from one place to another by means of a vehicle, aircraft, or ship”

According to Black’s Law Dictionary the “Transport” means:-

“The movement of goods or persons from one place to another by a carrier.”

KJ Aiyar Judicial Dictionary (Sixteenth Edition) describes “Transportation as under:-

“The movement of goods or persons from one place to another by a carrier.”

Petitioner was found to be carrying the artificial milk from one place to another by means of a vehicle/tanker, as such I am confident to hold that he (petitioner) was transporting the milk, therefore, shall be squarely covered by the purview of “food operator”.

Said contention of the learned counsel that petitioner was not a food operator, being not in accordance with law, is hereby rejected outrightly.

6. I also think it appropriate to have a look of provision of Section 22-A of the Punjab Food Authority Act, 2011, which reads as under:-

“Section 22-A. Offence by large scale manufacturers.-

Notwithstanding anything contained in section 22, if a food operator manufactures, keeps, transports, imports or exports adulterated food for large scale use or consumption in quantities equal to or in excess of the quantities mentioned in the Schedule appended to this Act, he shall be liable to imprisonment for a term which may extend to five years but which shall not be less than six months and fine which may extend to two million rupees but which shall not be less than five hundred thousand rupees.”

Said provision cover those cases, wherein quantity of the food involved is equal to or in excess of the quantities described in the schedule appended to the Act of 2011. Quantity of milk mentioned in the schedule is 500 liters. Since milk recovered in the present case is 2400 liters, as such said provision is fully applicable to petitioner, which has been shown to be non-bailable. It was entailing the penalty of imprisonment extending upto five years.

7. Milk is used as a complete diet or complete drink as it is full of health benefits. It contains a wide array of nutrients including vitamins, minerals, proteins, healthy fats, and antioxidants. It is rich source of quality proteins that contain all nine essential amino acids, which help in reducing age related muscle damage. Milk is also beneficial for bone growth which reduces chances of osteoporosis and bone fractures.

Synthetic Milk that is also called **Sweet Poison** is not the milk but an artificial imitation of natural milk with a high degree of adulteration to increase the volume of milk. Main components of Synthetic Milk are water, pulverized detergent or soap, sodium hydroxide, vegetable oil, salt and urea. Although it does not kill at once but it slowly makes the body a fertile ground or farm house for diseases. According to research, use for Synthetic Milk inflicts very serious harms on human body causing **swelling in the eyes** and **complications in lever and kidney**. Apart from this Synthetic Milk is **deadly for pregnant women** and patients suffering from conditions of **heart ailment** and **high blood pressure**. What is worse is that Synthetic Milk is extremely **poisonous for small children**.

8. I am fully conscious of the fact that the offence under Section 22-A of Act of 2011 being punishable with the imprisonment extending upto five years as such was not falling within embargo contained in Section 497 of Cr.P.C. and bail is normally allowed in such like cases, but at the same time the Honourable Supreme Court of Pakistan was pleased to hold in plethora of the judgments that it is not a rule of universal application that bail should be allowed in each and every case not falling within prohibitory clause. Each case has to be seen in the light of its own peculiar circumstances. The Court may refuse the bail to an accused even in the cases not falling within the embargo, if exceptional circumstances of the case so require. If any reference

in this regard is required that can be had from 'Shameel Ahmad v. The State' (2009 SCMR 174), 'Amir Sheikh v. The State' (2012 YLR 2136).

9. Since the people who manufacture, transport, or deal in the business of fake, artificial and substandard milk are guilty of a crime against the public at large, as such they hardly entitle to any leniency. Circumstances of the case are presenting a dreadful picture, which do not permit me to exercise my discretion in favour of the petitioner.

10. Precedent judgments relied upon by the learned counsel for the petitioner were found to have been rendered on different premises, hence not applicable to the case in hand.

11. In the consideration of above discussion, the presence petition has no force, hence **dismissed**.

12. Needless to mention that any observation made in this order is tentative in nature and shall not influence the learned trial court in any manner.

(TANVEER AHMAD SHEIKH)
JUDGE

APPROVED FOR REPORTING.

JUDGE